



OREGON YOUTH AUTHORITY

Policy Statement

Part I – Administrative Services



Subject:

Director's Incident Notification and Report

Section – Policy Number:

E: Information Management – 1.0

Supersedes:

I-E-1.0 (12/17)
I-E-1.0 (06/13)
I-E-1.0 (03/12)
I-E-1.0 (06/10)
I-E-1.0 (07/06)
I-E-1.0 (08/05)

Effective Date:

02/01/2021

Date of Last Review:

10/10/2024

Related Standards and References:

- [Incident Notification, Report, and Review Matrix](#)
- [Attachment A](#): OYA Notification Tree
- [OYA policies](#): I-E-3.3 (Information Security Incident Response)
I-E-3.0 (OYA External Communications)
II-D-2.2 (Suicide Prevention in Close Custody)
III-A-1.0 (Youth Incident Reports - Community)
III-D-3.4 (Suicide Prevention in Community Placements)

Related Procedures:

- [Facilitywide procedure](#): FAC I-E-4.0 Youth Incident Report (YIR)

Policy Owner:

Communications Director

Approved:

Joseph O'Leary, Director

I. PURPOSE:

This policy describes when and how OYA staff will notify the Director's Office and OYA's executive team of significant incidents.

II. POLICY DEFINITIONS:

Executive team: A group of OYA executive staff that provides oversight to agency operations. Membership includes the director, deputy director, assistant directors, and other persons as requested by the executive team.

Close custody: The OYA placement designation for youth who are committed to OYA legal custody or transferred to OYA physical custody, and reside in youth correction facilities.

Director's Office: For notification purposes, Director's Office staff include the agency director, deputy director, public policy and government relations manager, and communications director.

Excessive force: A type or amount of force beyond that which is reasonably necessary to control the situation and achieve the correctional objective; or the continued use of physical intervention after it is no longer reasonably necessary.

Information security incident: A single or a series of unwanted or unexpected information security events that result in harm, or pose a significant threat of harm to information assets, OYA, or a third party and require non-routine preventative or corrective action.

Physical intervention: Direct physical contact where reasonable force is applied to a youth to either restrict movement or mobility or to disengage from harmful behavior.

Suicide attempt: Incomplete, potentially lethal effort to complete suicide.

III. POLICY:

Within the course of OYA daily operations, incidents may occur that require immediate notification to the Director's Office.

Such incidents are likely to be of significant concern or interest to central administration or the public. These incidents may also affect agency actions, outside entities (such as regulatory, health, or safety agencies), procedures, or policy. Such incidents may potentially attract media attention.

It is **imperative** that the Director's Office is notified and aware of all such incidents. This notification is separate and apart from, and may be in addition to, any other required reporting through a Youth Incident Report (YIR).

The Communications Office will coordinate media contact, including media requests for information about specific incidents. If contacted directly, staff will refer media representatives to the Communications Office.

Written notification to the OYA executive team is required as described herein.

IV. GENERAL STANDARDS:

A. Significant Incidents Requiring Notification

The nature of the incident determines whether a notification is made to the Director's Office. Incidents that require immediate notification to the Director's Office are time-sensitive situations where delay may have serious consequences, or where a decision by the deputy director or director may be quickly needed. Such incidents include, but are not limited to:

1. Staff death (on or off duty);
2. Youth death;
3. Death or injury of a member of the public as a result of an alleged action by a youth or staff;
4. Any emergency offsite medical care for close-custody youth (e.g., youth suicide attempt);
5. Any close-custody youth potentially lethal suicide attempt;

Added #5
10/10/22

6. Any medical emergency for youth placed in the community that results in a hospital admission;
7. Any incident that requires emergency community response involving a youth in OYA custody or staff who is on duty (e.g., ambulance, fire department, law enforcement);
8. Any incident involving a youth in OYA custody or staff that potentially results in media interest or inquiry (e.g., high profile crime, family member threatening to notify media, incident included call from media or stakeholder, incident requires community awareness);
9. Loss of functional control of a facility or housing unit that required a staff recall or law enforcement response;
10. An escape, attempted escape, or unauthorized leave from close custody;
11. Any staff use of excessive force on a youth or other person, regardless of whether an injury occurred; and
12. An information security incident, as classified by the information security Incident Response Group. See OYA policy I-E-3.3 Information Security Incident Response for additional notification requirements.

B. Director's Office Notification

Incidents that require immediate notification to the Director's Office are time-sensitive situations where delay may have serious consequences, or where a decision by the deputy director or director may be quickly needed.

1. Staff will start the OYA Notification Tree (Attachment A) within the first hour after the staff member becomes aware of the incident. The notification tree must be completed within two hours. Notification must be made in-person, by telephone, or by text message.
2. Voicemail, faxes, or e-mails are **not** appropriate initial notification methods.

If voicemail is reached, staff must leave a message alerting the recipient to the incident and stating that they are calling the next person in the notification tree.

C. Director's Incident Report

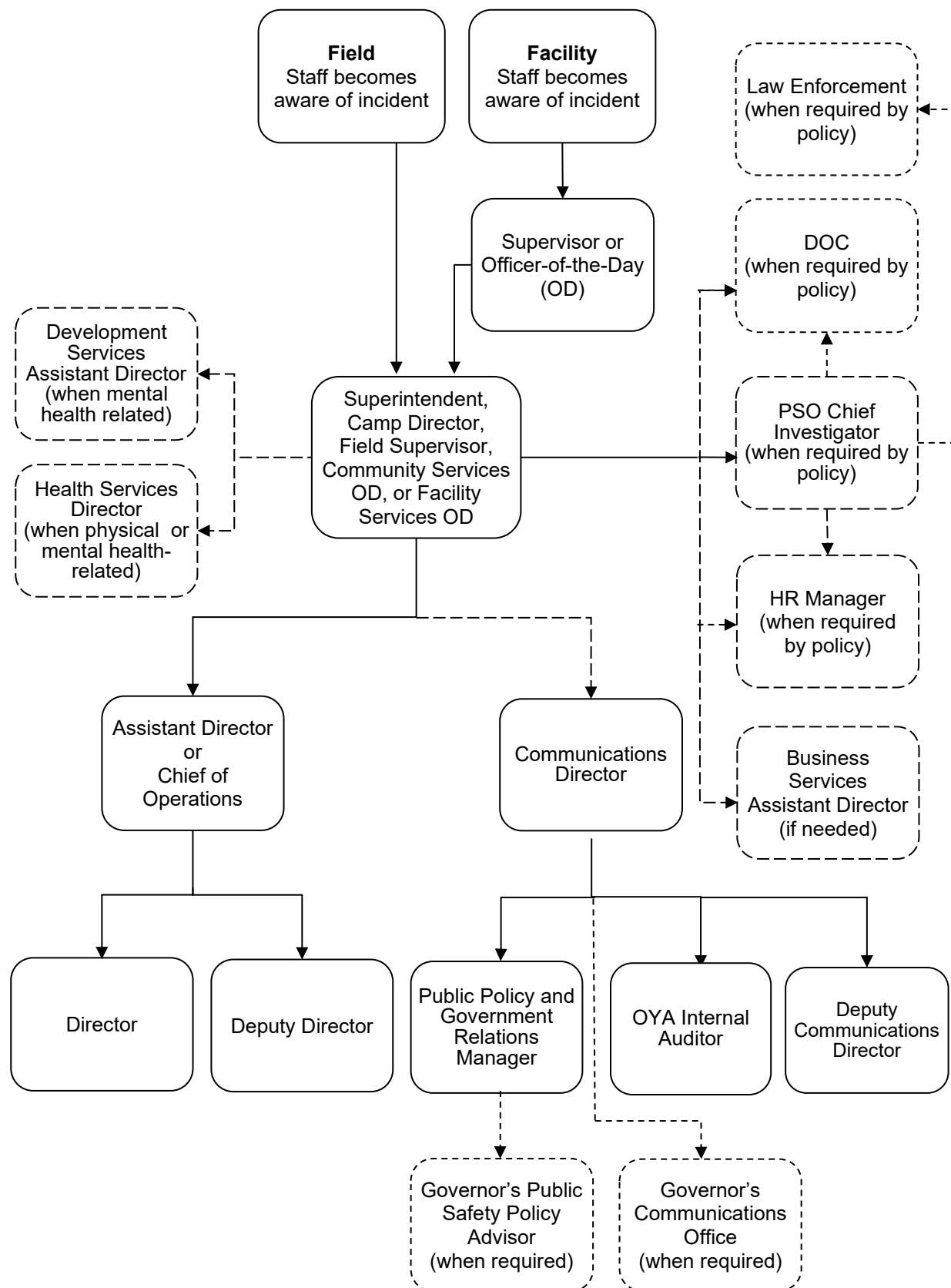
1. Written notification regarding a significant incident must be provided to the OYA executive team within three business days after staff become aware of the incident, unless otherwise specified by the director or designee.

2. When the incident is documented in a YIR, the written notification will be system-generated if “Director” is selected on the notification documentation screen.

D. Public Notification

Director’s Office staff will determine when public notification is necessary (see OYA policy I-E-3.0 OYA External Communications).

V. LOCAL OPERATING PROCEDURE REQUIRED: NO



Key: —> Arrow points to the person (in the box) who **must** be notified.

----> Arrow points to the person (in the box) who **may** be notified.